

CONTRACTOR MASTER AGREEMENT

This Contractor Master Agreement (this “Agreement”) is made as of the 23rd day of January, 2025 by and between **All Weather Specialist Inc, located at 214 W 119th Street, Chicago, IL 60628** (“General Contractor”) and **Blacktech Solutions Corp, 14076 Lincoln Ave, Dolton, IL 60419** (“Contractor”). General Contractor and Contractor may each be referred to in this Agreement individually as a “Party” and collectively as the “Parties.”

NOW THEREFORE, in consideration of the foregoing, the parties, intending to be legally bound, hereby agree to the following:

Master Agreement; Statements of Work. This Agreement sets forth the terms and conditions under which Contractor will perform Program work as more particularly specified herein. Contractor will perform any Program work only upon execution of a mutually agreed to statement of work by the parties hereto (each a “Statement of Work”). Each Statement of Work will be substantially in the form set forth in the attached Exhibit A and will include, at a minimum: (i) the location of the property at which the work is to be performed by Contractor; (ii) a detailed description of the work Contractor will perform and materials Contractor will supply; (iii) the contract sum for the work; and (iv) any other applicable terms and conditions or information required by CDOH. The terms of this Agreement will be incorporated into, and form an integral part of, each Statement of Work. The term “this Agreement” shall be deemed to include any Statement of Work. Contractor’s proposal may be attached to a Statement of Work, provided, however, that if Contractor’s proposal (hereinafter, a “Proposal”) is attached to any Statement of Work, the parties hereby mutually agree that: (i) such Proposal is included only as a convenience and to expedite the preparation to the applicable Statement of Work; and (ii) only the portions of such Proposal that describe the details, specifications, performance times, and pricing for the Work shall be deemed to be incorporated into the applicable Statement of Work, and only to the extent consistent with the other provisions of such Statement of Work.

2. Description of Work. Contractor shall perform work at various locations in accordance with General Contractor’s plans and specifications, this Agreement and any Change Order, as defined herein, (collectively, the "Contract Documents"): energy efficiency, decarbonization, and other sustainability and necessary improvements. Industry terminology used in any Contract Documents which are not defined shall be interpreted as having the same meaning as that recognized in the construction industry in the area where the Property is located.

2. Contract Price and Payments. General Contractor and Contractor have agreed to a price for the Work as outlined on the SOW (“Statement of Work”) for each location. The Contract Price is subject to additions or deductions in accordance with any mutually agreed to changes and/or modifications in the Work.

Contractor shall submit to All Weather Specialist written invoices for payment in a form approved by All Weather Specialist in its reasonable discretion (“Application for Payment”) showing the value of Work completed to date, along with substantiating data and information as required by All Weather Specialist, Elevate and/or CDOH. All Weather Specialist may condition Contractor’s payments upon the delivery by Contractor to All Weather Specialist of a sworn statement and waivers of lien, in form approved by All Weather Specialist and Elevate, from all subcontractors and suppliers who are furnishing labor, materials or services for the Work. Such sworn statements and waivers of lien shall be promptly provided by Contractor to All Weather Specialist upon request. To the extent approved by All Weather Specialist in accordance with the Contract Documents, and subject to withholding for delayed or improper

performance of the Work, defective Work, claims or potential claims of unpaid subcontractors or suppliers, other damage to All Weather Specialist, or otherwise as provided in the Contract Documents, Contractor shall be paid within forty-five (45) days after receipt of a properly presented invoice, documents in accordance with the Contract Documents and pictures with acceptance of the Work by Elevate, issuance of any certificates and/or similar approval by relevant governmental agencies (which may include approval by CDOH), satisfaction of all conditions precedent contained in the Contract Documents, and certification from Contractor that all subcontractors, laborers, materialmen, and suppliers have been paid in full, and receipt of final unconditional waivers of lien, in the form approved by All Weather Specialist, from Contractor and all subcontractors and suppliers furnishing labor, materials or services. Acceptance of final payment by Contractor shall constitute full waiver and release by Contractor of all claims against Elevate arising out of the Work. Contractor shall submit all warranties, guarantees, as-builts, and other closeout documents as precondition to final payment, and all warranties and guarantees submitted by Contractor shall be assignable to Elevate, or, at the option of Elevate, shall name the Owner and its tenant(s) as joint beneficiaries.

3. Additional Compensation. Any and all claims for additional compensation, extra work, delay, extensions of time, or loss, injury or damages of any kind, shall be submitted in writing by Contractor to All Weather Specialist within three (3) days after the occurrence giving rise to the claim, and a full explanation and accounting of same shall be provided in writing within ten (10) days thereafter; all claims not made in strict accordance with the terms of this Section shall be void. Any course of dealing hereinafter entered into which appears to change or modify the provisions of this Section or any other provision contained in the Contract Documents is deemed to have been entered into with full knowledge and understanding that such course of conduct shall not change or modify any provision of the Contract Documents and, most particularly, this Section.

4. Materials and Labor. Contractor shall provide and pay for all labor and equipment, including tools, construction equipment, machinery, transportation and all other facilities and services, and all materials necessary for the completion of the Work. All materials shall be good quality and new, unless the Contract Documents require or permit otherwise. Contractor may substitute materials only with the prior written approval of General Contractor.

5. Contractor's Performance Requirements. In addition to Contractor's other responsibilities herein, and unless otherwise explicitly stated in the applicable Statement of Work:

- A. Contractor agrees to participate in meetings as reasonably requested by All Weather Specialist to ensure the efficient operation of the Program, including, but not limited to, ensuring Contractor understands and is in compliance with all Program requirements (including any Program procedures) and to address any customer service issues. Contractor's costs for attending any such meeting will be included in its overhead costs for the Work. No additional payment will be made to Contractor for attendance at any meeting.
- B. Upon request by All Weather Specialist, Contractor will provide information about Contractor's business to All Weather Specialist to ensure compliance. Such information may include, but is not limited to, demographic information about Contractor's owners, principals, employees, and/or subcontractors, Contractor's participation in youth and job training programs, diverse business enterprise certifications (including, but not limited to information as to whether Contractor is, or is eligible to become, a certified minority-owned business enterprise, women-owned business enterprise, veteran-owned business enterprise, and/or service-disabled veteran business enterprise), and size classification of business as designated by the U.S. Small Business Administration size standards by average annual receipts and/or number of employees.

Contractor shall pay for and secure all permits, licenses, certificates, and/or fees which may be required for the execution or completion of the Work by agencies with jurisdiction over the Property. Contractor shall pay for all materials, equipment, labor, or services used in, or in connection with, the performance of this Agreement and furnish satisfactory evidence of Contractor's compliance with the terms of this Agreement, **including the requirements of the Illinois Prevailing Wage Act (820 ILCS 130/)**.

Illinois Prevailing Wage Requirements. Contractor covenants and agrees to pay, and to contractually obligate and cause its subcontractors and each lower-tier subcontractor to pay, the prevailing wage rate as ascertained by the Illinois Department of Labor ("IDOL"), to all applicable employees engaged in construction, as that term is defined in the Prevailing Wage Act (820 ILCS 130/). All such contracts shall list the specified rates to be paid to all laborers, workers, and mechanics for each craft or type of worker or mechanic employed pursuant to such contract. If IDOL revises such prevailing wage rates, the revised rates shall apply to all such contracts. Upon Elevate and/or the City's request, Contractor shall provide All Weather Specialist with copies of all such contracts entered into to evidence compliance with this Section and other records evidencing compliance herewith, such as Certified Transcripts of Payroll submitted to IDOL. The provisions of this section apply to Contractor, and to each applicable subcontractor of Contractor, except where Contractor receives a written advisement from the City, IDOL, or Elevate that the Prevailing Wage Act does not apply.

- C. Further, Contractor shall comply with and give all notices required by all applicable permits, laws, ordinances, and codes of the local government in which the Work is performed and the State of Illinois. Fees applicable to the Contractor's undertakings are deemed to be included in the price and shall be payable by Contractor. Contractor shall provide copies of required permits, licenses, certificates, and other documents to All Weather Specialist prior to beginning any Work, and as may otherwise be reasonably requested by All Weather Specialist.
- D. Contractor shall perform all cutting, fitting, patching, sleeving, grouting, or sealing of its Work that may be required to integrate the Work.

6. Licenses and Permits. Contractor shall obtain all licenses and permits necessary for proper completion of the Work. Contractor is responsible for the cost of any necessary permits or licenses.

7. Laws and Regulations. Contractor shall perform the Work in a workmanlike manner and in compliance with all applicable federal, Illinois state, and local Chicago laws, regulations and ordinances, trade standards, ethical guidelines and any safety requirements of General Contractor (the "Applicable Laws"). Contractor shall promptly notify General Contractor upon discovery of any variance between the Applicable Laws and the Construction Documents.

8. Supervision of Construction. Contractor shall be solely responsible for and shall supervise and direct all construction under this Agreement. Contractor shall provide adequate, competent and suitable personnel to perform the Work and shall at all times maintain good discipline and order at the Property. Contractor will at all times take all reasonable precautions for the safety of the Resident-owners, its employees and the public at the Property. Contractor agrees to assume full responsibility for the acts, negligence, and/or omissions of its employees and any subcontractors and their employees.

9. Record Documents. Contractor shall maintain in a safe place at the Property one record copy of all drawings, specifications, addenda, written amendments, and the like in good order and annotated to show all changes made during construction, which will be delivered to General Contractor upon completion of

the Work. General Contractor shall have the right to inspect and review such documents upon notice to Contractor.

10. Utilities. Owner shall pay for all permanent electric, water, phone, cable, sewer and gas service as needed to perform the Work. Contractor shall pay for the installation, connection and removal of any temporary utilities on the Property required during the performance of the Work. All temporary utilities shall conform and adhere to the Applicable Laws.

11. Hazardous Materials. Contractor shall be responsible for all Hazardous Materials brought to the Property by Contractor. Hazardous Materials shall include radioactive materials, asbestos, polychlorinated biphenyls, petroleum products, crude oil, flammable materials, chemicals or solvents known to cause cancer or reproductive toxicity, pollutants, contaminants and toxic substances which are restricted, prohibited or regulated by any agency of government in its manufacture, use, maintenance, storage, General Contractorship or handling. If Contractor discovers any Hazardous Materials on the Property, Contractor shall immediately notify General Contractor and may cease working until the material or substance has been rendered harmless. General Contractor shall defend, indemnify and hold harmless Contractor, any subcontractors, and their respective agents and employees from and against all claims, damages, losses and expenses, including attorney's fees, arising out of or resulting from contact with the Hazardous Substance in performance of the Work resulting in bodily injury, illness or death, or injury or property damage, *provided* such claim, damage, loss or expense is not the result of any negligent act or omission by the party seeking such indemnity.

12. Warranty. Contractor warrants that the Work shall be in accordance with the Contract Documents, applicable law and trade standards and free from material structural defects, improper workmanship or defective materials. Contractor shall replace, correct or repair any Work not in accordance with the Contract Documents, applicable law and trade standards or any defects caused by faulty materials, equipment or workmanship for a period of **one year** from the date of completion of the Work. Nothing in this Section 11 shall be construed to place a time limit with respect to any other obligation Contractor may have under this Agreement. Contractor shall warrant that any supplier or subcontractor warranties have been duly registered and complied with and shall deliver signed copies of these warranties to General Contractor.

13. Condition of the Property. Contractor agrees to keep the Property and adjoining driveways free and clear of waste material and rubbish. Contractor shall confine the storage of materials and equipment and the operations of employees to the Property and shall not unreasonably encumber the Property with materials or equipment. Contractor shall be fully responsible for any damage to the Property or areas contiguous thereto resulting from the performance of the Work. At the completion of the Work, Contractor shall remove all waste materials, rubbish and debris from and about the Property as well as all tools, appliances, construction equipment and machinery, and surplus materials, and shall leave the Property clean and ready for occupancy by General Contractor.

14. Inspection. General Contractor shall have a right to inspect the Work at any time and request that Contractor promptly correct any Work that is defective or does not conform to the Contract Documents. If required, the Work shall be inspected and certified by the appropriate state or local agency or health officer at each necessary stage.

15. Right to Stop Work. If Contractor fails to correct any defective Work or repeatedly fails to perform the Work in accordance with the Contract Documents, General Contractor shall have the right to order Contractor to stop performing the Work, or any portion thereof, until the cause for such order is eliminated.

16. Subcontracts. Contractor shall furnish to General Contractor a list of names of subcontractors proposed to perform principal portions of the Work. Contractor shall not employ any subcontractor to whom General Contractor reasonably objects. A subcontractor, for the purposes of this Agreement, shall be a person with whom Contractor has a direct contract for work at the Property. All contracts between Contractor and subcontractor shall be in accordance with the terms of this Agreement and the Contract Documents.

17. Work Changes. General Contractor reserves the right to order changes to the Work in the nature of additions, deletions or modifications, without invalidating this Agreement, and agrees to make corresponding adjustments in the Contract Price and time of termination if applicable. All changes will be authorized in a written "Change Order" signed by General Contractor and Contractor, which shall be incorporated by reference herein.

18. Other Contractors. General Contractor reserves the right to enter into other contracts in connection with the Work. Contractor shall cooperate with all other contractors so that their work shall not be impeded and shall give them access to the Property as necessary to perform their contracts.

19. Indemnification. Contractor agrees to defend, indemnify and hold harmless General Contractor and its agents and employees, from and against all claims, actions, liabilities, suits, demands, injuries, obligations, damages, losses, settlements, judgments, fines, penalties, costs and expenses, including reasonable attorneys' fees, arising out of any negligent act or omission by Contractor, a subcontractor or anyone directly or indirectly employed by them in the performance of the Work resulting in bodily injury, illness or death, or for property damage, including loss of use, unless caused by the sole negligence or willful misconduct of General Contractor.

20. Contractor's Insurance. Contractor agrees to maintain at its own expense during the entire period of construction at the Property:

A. General Liability Insurance. Such general liability insurance as will protect Contractor from claims for property damage and bodily injury, with limits of liability not less than \$1,000,000 for each occurrence.

B. Workers' Compensation Insurance. Such workers' compensation and employee insurance as required by law.

C. Automobile Liability Insurance. Such automobile liability insurance with limits of liability not less than \$1,000,000.

D. Other Insurance. As required by law.

Contractor shall name General Contractor, Owner, and the named Resident Owners as additional insureds. Proof of such insurance shall be filed by Contractor with General Contractor within a reasonable time after execution of this Agreement.

21. Waiver of Subrogation. General Contractor and Contractor each waive any and all claims or rights to recovery against the other Party for any loss or damage to the extent such loss or damage is covered by insurance or would be covered by any insurance required under this Agreement. General Contractor and Contractor shall cause each insurance policy carried by General Contractor or Contractor relating to the Property to include or allow a full waiver of any subrogation claims.

22. Time of Essence. All times stated in this Agreement or in the Contract Documents are of the essence. Contractor agrees that such times are reasonable for performing and completing the Work.

23. Liquidated Damages.

General Contractor is entitled to liquidated damages. Contractor shall take all necessary actions required to remedy any delay due to the fault of Contractor or anyone working under Contractor, including, without limitation, providing additional forces to perform the Work, or working overtime at Contractor's sole cost and expense. In the event the Work is not completed by the date set forth in Statement of Work, plus any extensions thereof as allowed in this Agreement, General Contractor shall suffer damages uncertain in amount and difficult to measure and prove accurately. General Contractor and Contractor agree that in lieu of actual damages, and not as a penalty, for delay in the performance of the Work, Contractor shall pay General Contractor the sum of **\$100 for each calendar day completion of the Work is delayed.** Contractor agrees that the liquidated damages specified herein are reasonable in amount and are not disproportionate to actual anticipated damages. General Contractor shall have the right to deduct any liquidated damages from any amount due or that may become due to Contractor. Liquidated damages shall be the sole and exclusive remedy for General Contractor for delay in completion of the work past the agreed upon date.

24. Extension of Time. The times stated in this Agreement may be extended for such reasonable time as Contractor may determine when performance of the Work by Contractor is delayed by a Change Order, labor disputes, fire, unusual delay in deliveries, abnormal adverse weather conditions, unavoidable casualties, or other causes beyond Contractor's control or which justify the delay.

25. Termination. General Contractor may, on five (5) days' notice to Contractor, terminate this Agreement before the completion of the Work, and without prejudice to any other remedy General Contractor may have when Contractor defaults in the performance of any provision of this Agreement, or fails to carry out performance of the Work in accordance with the provisions of the Contract Documents. In the event any of the contract sum under the applicable Statement of Work remains, the remainder shall be paid to Contractor. In the event the remaining contract funds are not sufficient to cover the costs and damages of General Contractor, Contractor shall pay the difference to General Contractor. General Contractor reserves the right to terminate this Agreement for its convenience upon ten (10) days' written notice, in which event Contractor shall be paid the reasonable cost of Work properly performed (including earned overhead and profit), but shall not be entitled to recover lost profits, or incidental and consequential damages. Contractor agrees to immediately provide General Contractor with access to all Work-related records and documents upon termination for any reason. Notwithstanding the forgoing, in the event the City terminates the Grant Agreement and specifies an earlier termination than those required by this Section, All Weather Specialist may terminate this Agreement effective as of the City's Grant Agreement termination date, provide notice to Contractor of the City's Grant Agreement termination date, and all Work being performed by Contractor must cease as of that date. No costs incurred after the effective date of a termination initiated by the City are allowed by Contractor, and Contractor shall be responsible for transferring materials and documents in its possession to All Weather Specialist as reasonably necessary for All Weather Specialist to wind down its obligations to Elevate and City.

26. Disputes. Any dispute arising from this Agreement shall be resolved through mediation then arbitration. The dispute shall be resolved through mediation. If the dispute cannot be resolved through mediation, then the dispute will be resolved through binding arbitration conducted in accordance with the rules of the American Arbitration Association.

27. Assignment. No Party hereto shall have the right to assign its rights or delegate its duties hereunder without the written consent of the other Party, which consent shall not be unreasonably withheld.

28. Waiver. No Party shall be deemed to have waived any provision of this Agreement or the exercise of any rights held under this Agreement unless such waiver is made expressly and in writing. Waiver by any Party of a breach or violation of any provision of this Agreement shall not constitute a waiver of any other subsequent breach or violation.

29. Independent Contractor. Contractor acknowledges that it is an independent contractor and is not an agent, partner, joint venture nor employee of General Contractor. Contractor shall have no authority to bind or otherwise obligate General Contractor in any manner nor shall Contractor represent to anyone that it has the right to do so. Contractor further agrees that in the event that the Company suffers loss or damage as a result of a violation of this provision Contractor shall indemnify and hold harmless General Contractor from any such loss or damage.

30. Rights of Third Parties. Nothing in this Agreement shall create or give to any third party a claim or right of action against Contractor or General Contractor.

31. Confidentiality.

As a result of Contractor's participation in the Work, Contractor may have access and contribute to information and materials of a highly sensitive nature, including Confidential Information. Contractor hereby warrants that Contractor and its employees and agents shall not (without in each instance obtaining the General Contractor's prior written consent) disclose, make commercial or other use of, or give or sell to any person, firm, or corporation, any Confidential Information received directly or indirectly from General Contractor or acquired or developed in the course of the performance of this Agreement unless: (1) required to do so pursuant to Applicable Laws (and then only after Contractor has given General Contractor prompt written notice of the legal compulsion and, at General Contractor's expense, provided by General Contractor with cooperation in any attempt General Contractor may make to gain a protective order acceptable to General Contractor); or (2) it is rightfully in the possession of Contractor from a source other than General Contractor prior to the time of disclosure of the information to Contractor under this Contract; or (3) it was in the public domain prior to the time of Contractor's receipt. All Confidential Information, regardless of form, shall be the property of General Contractor and shall be returned to General Contractor upon its request, or in any event, at the completion or earlier termination of this Agreement.

31. Miscellaneous

- **Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together, shall constitute one and the same document.
- **Headings.** The section headings herein are for reference purposes only and shall not otherwise affect the meaning, construction or interpretation of any provision of this Agreement.
- **Notices.** Any notice or communication given or made to any Party under this Agreement shall be in writing and delivered by hand, sent by overnight courier service or sent by certified or registered mail, return receipt requested, to the address stated above or to another address as that Party may subsequently designate by notice and shall be deemed given on the date of delivery.
- **Binding Effect.** This Agreement shall be binding and inure to the benefit of the Parties and their respective legal representatives, heirs, administrators, executors, successors and permitted assigns.
- **Governing Law.** This Agreement and the rights and obligations of the Parties hereto shall be governed by and construed in accordance with the laws of the State of Illinois, without regard to its conflicts-of-law provisions.
- **Severability.** If any provision of this Agreement is held to be invalid, illegal or unenforceable in whole or in part, the remaining provisions shall not be affected and shall continue to be valid,

legal and enforceable as though the invalid, illegal or unenforceable part had not been included in this Agreement.

- **Entire Agreement.** This Agreement contains the entire agreement between the Parties hereto with respect to the subject matter hereof, and supersedes all prior negotiations, understandings and agreements.
- **Amendments.** This Agreement may not be amended or modified except by a written agreement signed by all of the Parties.
- **Survival.** The obligations of Contractor expressly identified in this Agreement, or those by operation of law, shall survive the completion of Work or termination of this Agreement.
- **Industry Language.** The language used for terms of this Agreement, unless otherwise defined, shall be construed according to the customary meaning within the construction industry in the area where the Project is located and for the type of Work being performed.

IN WITNESS WHEREOF, the Parties have executed this Master Contractor Agreement as of the effective Date through their duly authorized representatives.

ACCEPTED BY:
All Weather Specialist Inc

Authorized Signature

Printed Name and Title

ACCEPTED BY:
Blacktech Solutions Corp

DocuSigned by:
derrell black
052C611D28BA438

Authorized Signature

Derrell Black president

Printed Name and Title

NOTE: This Exhibit A should not be completed or signed as part of this Agreement. This Exhibit A is a form Statement of Work that All Weather Specialist will complete separately for each Property for which Contractor is engaged to perform work.

FOR ALL WEATHER SPECIALIST INTERNAL USE: Complete all highlighted fields below and delete this text box

**EXHIBIT A
FORM
STATEMENT OF WORK**

This Statement of Work ("Statement of Work") is entered into this day of , 20__ by and between All Weather Specialist ("General Contractor") and Blacktech Solutions Corp ("Contractor"). The terms and conditions of that certain Master Contractor Agreement by and between Elevate and the Contractor and dated September 11, 2025 (the "Master Agreement") are incorporated herein as though fully set forth in this Statement of Work and form an integral part hereof.

All Weather Specialist and the Contractor, for the consideration hereinafter named, agree as follows:

- A. Contractor shall perform the Work specified herein at the "Property" located at:
 - i. Property Address: Click or tap here to enter text.
 - ii. Property City/State/Zip: Click or tap here to enter text.
- B. The "Owner" of the Property is: Click or tap here to enter text.
- C. The details of the Work to be performed at the Property and a schedule for Contractor's performance of the Work is set forth in **Attachment 1** to this Statement of Work. Contractor's proposal to complete the Work ("Proposal") may be attached to this Statement of Work as **Attachment 1**. If the Proposal contains details regarding the Work to be performed at the Property, the parties hereby mutually agree that: (a) such Proposal is included only as a convenience and to expedite the preparation of this Statement of Work; and (b) only the portions of such Proposal that describe the details, specifications, performance times, and pricing for the Work shall be deemed to be incorporated into this Statement of Work, and only to the extent consistent with the provisions of the Agreement and other provisions of this Statement of Work.
- D. The Work will be completed no later than (check one):
 - ☐ The deadline specified in the Proposal included hereto as Attachment 1 (or another date if mutually agreed to by the parties).
 - ☐ 60 days from the effective date of this Statement of Work.
- E. The contract sum for the Work to be performed by Contractor at the Property shall be: Click or tap here to enter text.
- F. Contractor will engage the following subcontractor(s) to perform a portion of the Work as noted below (If none or if specified in Contractor's Proposal attached to this Statement of Work, leave blank.): Click or tap here to enter text
- G. The parties hereby ratify and confirm that the Master Contractor Agreement is in full force and effect in accordance with its terms.

IN WITNESS WHEREOF, All Weather Specialist and the Contractor have executed this Statement of Work as of the date first above written.

All Weather Specialist Inc

By: _____

Name and Title:

Blacktech Solutions Corp

By: _____

Name and Title:

ATTACHMENT 1 TO SOW

CONTRACTOR'S PROPOSAL

[Contractor's Proposal begins on following page.]